STANDARD OPERATING PROCEDURE	G-7100

SARPY COUNTY
SHERIFF'S OFFICE
PAPILLION * NEBRASKA
Greg London
SHERIFF

DATE ISSUED	DATE REVISED	DATE REVIEWED
12/04/06	**11/26/24**	03/24/24

APPROVED:

GREG LONDON

CHAPTER TITLE	RESOURCES
GENERAL	FOP CONTRACT RULES OF THE SARPY COUNTY SHERIFF'S OFFICE MERIT COMMISSION
SUBJECT	CROSS REFERENCE
SICK LEAVE	G-2100 COMPLAINT PROCEDURE G-2200 DISCIPLINE G-7110 FAMILY AND MEDICAL LEAVE ACT G-7120 SICK BANK

I. Purpose:

The purpose of this policy is to establish the guidelines for the use of sick leave.

II. Policy:

It shall be the policy of the Sarpy County Sheriff's Office that sick leave shall only be taken in accordance with the current FOP contract, which is intended to provide employees with full salary when an employee is unable to work due to illness. Sick leave may only be taken for an employee's own illness or injury, the illness or injury of the employee's immediate family members (see definition in applicable FOP contract), or to attend an appointment with a health care provider for the care of one of the above listed individuals. Sick leave is not an extension of other paid time off. Falsely using sick leave is fraudulent behavior and will result in discipline. Sick leave shall be denied when facts indicate the employee is abusing sick leave.

III. Procedures:

A. Sick Leave Procedure: When an employee is unable to perform assigned job duties due to personal illness or due to the illness of one of the employee's immediate family members (see definition in applicable FOP contract), he or she shall adhere to the following:

1. The employee shall contact his or her immediate supervisor as soon as possible prior to the scheduled duty time (including scheduled training) and keep his or her supervisor informed of the employee's status. The employee shall also advise his or her supervisor of any scheduled events he or she will not be attending due to illness (e.g., meetings, training and court).

2. If the immediate supervisor is unavailable, the employee shall contact a command officer in his or her division. If the employee is unable to contact any of the above, the ADC shall be contacted.

3. Command Staff shall notify their immediate supervisors, as well as the ADC when utilizing a sick day.

4. The employee shall be prepared to provide a basic explanation as to why they are unexpectedly unable to work due to illness or injury. While the Sheriff's Office respects employees' privacy rights, the Sheriff's Office also needs to ensure the sick leave policy is not being abused.

5. The employee (or the person calling on the employee's behalf) must speak with a supervisor personally and shall not leave a voicemail, email, or text message as a substitute for personal communication.

6. The supervisor shall not immediately approve the sick leave but shall acknowledge the notification. Approval or denial shall be completed by the administration division daily when the employee's records are consulted. The supervisor shall reflect the use of sick leave on roll call and book off the employee utilizing sick leave in the scheduling software (OSL) for records purposes.

7. The employee shall provide his or her supervisor with a phone number so that employee may be reached should the need arise. The Sheriff's Office reserves the right to investigate and validate all sick leave requests. When substantiating evidence is required, supervisors shall request only the minimum information necessary, and any personal medical information obtained shall be protected as required by law.

8. Upon return to duty, the employee shall:

a) Complete an Electronic Leave Request form in OSL.

b) Employees shall make notes in OSL in the "short description" field when submitting sick leave. The notes shall be in a standardized format and followed by "FMLA" if the employee is utilizing time as part of pre-approved FMLA leave, regardless of leave type utilized. Employees shall first indicate if the sick leave is FAMILY or SELF. After the FAMILY or SELF designation, the employee shall choose from the following word bank:

(1) <u>Procedure:</u> This shall include, but not limited to, surgery or outpatient procedure.

(2) Illness: This shall include, but not limited to, cold, flu, fever, symptoms from a medical condition.

(3) Injury: This shall include, but not limited to, broken bones, household accidents, stiches, sprains, etc.

(4) Appointment: This shall include, but not be limited to, any kind of appointment of medical nature with a Doctor, Dentist, Eye Professional, Specialist, Physical Therapy, etc. The time of the appointment shall be included. Sick leave may only be used for travel time to/from the appointment as well as the duration of the appointment. Generally, sick leave for an appointment shall not be granted in excess of 4 hours unless documentation from the medical care provider substantiates the request for additional time.

(5) Maternity/Paternity: This shall be limited to time utilized for the birth of a baby or adoption.

(6) Other: This shall be anything else that may not fit into the description of an above category, followed by a brief explanation. This would include a military exigency under FMLA.

9. If sick leave continues for more than three consecutive duty shifts or the employee is admitted to a hospital for any length of time, a Physical Capacity Report, completed by a physician, shall be submitted to the Assistant Administrative Commander. This shall not apply to sick leave utilized to care for an immediate family member. Sick leave utilized to care for an immediate family member for more than three consecutive duty shifts (or partial shifts) shall be accompanied by a note from the family member's physician for the employee's absence. Supervisors who become aware of such absence for either the employee or a qualifying family member shall notify the Administration Division for evaluation of staffing needs as a result of the employee's absence. Supervisors shall also be responsible for notifying the Administration Division in the event the employee would qualify for FMLA.

a) The Sheriff, Chief Deputy, or division commander shall have the discretion to require a physician's return to work authorization at any time when it may be reasonable to request one.

b) Employees who do not receive a full release to return to work shall notify his or her division commander. The division commander shall notify the Administrative Commander, who shall notify the Sheriff and the Chief Deputy. The Sheriff or the Chief Deputy may determine if

an alternate duty assignment is available for the employee to return to work.

c) If an employee is required to take medication or has a medical condition that could hinder or impair his or her ability to perform his or her duties, he or she shall report the details to his or her supervisor and division commander.

d) All records regarding health information shall be filed in a separate confidential file maintained by the Sheriff's Office.

10. In the daily calculation, sick leave shall be utilized first. Vacation hours, if approved, shall be used in the event sick leave is exhausted. Compensatory time, if approved, shall then be utilized. After all sick, vacation, and compensatory time are exhausted by the employee, the employee's pay shall then be deducted by the payroll clerk.

11. Earned sick leave shall be posted on the first day of each month for time earned in the preceding month. Sick leave may only be taken after it is posted.

12. Generally, sick leave shall not be granted to an employee who has already taken vacation or compensatory time. A division commander may approve sick leave if the basis for the sick leave occurs before the vacation or compensatory time is taken or if the employee physically returns from vacation. The employee shall immediately submit documentation of such occurrence with his or her division commander.

13. Failure to adhere to these procedures may result in the denial of sick leave.

B. Exhaustion of Leave:

1. When an employee notifies his or her supervisor that he or she is requesting sick leave, he or she shall also notify the supervisor that he or she may have exhausted his or her sick leave. If the employee is out of sick leave, the supervisor shall:

a) Grant vacation or compensatory time, if available.

b) If the employee is a member of the FOP sick bank, he or she may apply for sick bank leave in accordance with guidelines of the FOP Contract and the rules developed by the Sick Bank Board, found in G-7120 Sick Bank.

c) If vacation, compensatory time, and/or sick bank leave are unavailable, the supervisor shall complete a Payroll Deduction

Approval form listing the hours to be deducted from the employee's salary.

2. If the employee is absent from work for a qualifying medical condition under FMLA, or the supervisor is aware of a qualifying event for the employee, FMLA policy procedures shall be followed. All leave relating to the employee's absence shall run concurrently with the FMLA guidelines (480 hours in a rolling calendar year) whether said leave is paid or unpaid from the date the leave first occurred.

a) Within seventy-two (72) hours of exhausting FMLA hours, the employee or his or her representative shall submit a written application to the Sheriff for a leave of absence. Included in such application shall be:

(1) The reason for the inability to return to work.

(2) An estimated date when the employee will be able to return to work including a physician's statement if the absence is medically related.

b) Within five (5) days of receipt of a written request for a leave of absence, the Sheriff and/or the Chief Deputy, and the appropriate division commander(s), shall meet to review the employee's request and issue their decision.

c) If a written request for a leave of absence is not made within seventy-two (72) hours from the time the employee's FMLA hours are exhausted, the Sheriff may consider the employee's lack of response and continued absence to be voluntary resignation.

C. **Review of Sick Leave:** Supervisors shall be responsible for reviewing the sick leave usage of all subordinates under their supervision. In general, three unscheduled absences in a 90-day period or a consistent pattern of unscheduled absences may be considered excessive and the reasons for the absences may be called into question. Excessive absenteeism, lateness, or leaving early may lead to disciplinary action, including the possibility of termination. An absence from work for three consecutive workdays without notifying a supervisor may be considered a voluntary resignation.

1. When a supervisor believes an employee's sick leave usage may be excessive, the supervisor shall review the employee's sick leave records and then meet with the employee. The contents of the meeting shall be documented in a Performance Memo. Supervisors shall consider any relevant information when evaluating an employee's sick leave usage, including, but not limited to, the following:

a) Cumulative total number of sick leave hours used in the current year.
b) Total number of hours used in prior years.
c) Length of the employee's service.
d) Employee's sick leave balance.
e) Any pattern of usage before and/or after employee's day off or scheduled vacation, holiday or compensatory time, calling in sick on previously denied vacation request, calling in sick after reaching maximum sick leave accrual, or any other similar pattern.
f) Medical documentation provided by the employee.
g) Number of occurrences of sick leave.
h) Whether the usage is a result of a continuing illness or any verified chronic long-term illness. Generally, employees shall not be counseled if the sole basis of the sick leave usage is an extended leave for treatment of a serious and verified medical condition.